

1.

CASE #	CASE NAME	HEARING NAME
CVRI2400574	CANALES vs ULTRA SHINE CA LLC	MOTION TO BE RELIEVED AS COUNSEL FOR ULTRA SHINE, INC.,

Tentative Ruling:

The unopposed motion to be relieved as counsel of record is denied.

Analysis:

The declaration states that “our office attempted contact” with the client, “our office” received no response, and “our office” conducted a search. It appears that the declarant lacks personal knowledge of those facts. Moreover, the medium by which those attempts were made is vague. Paragraph 4 of the declaration is blank. The proposed order includes a telephone number for the client that is not supported by the declaration. The proposed order is blank at paragraphs 5 and 7.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2400574	CANALES vs ULTRA SHINE CA LLC	MOTION TO BE RELIEVED AS COUNSEL FOR ULTRA SHINE CA LLC

Tentative Ruling:

Although defense counsel reserved hearings for motions to be relieved regarding both Ultra Shine CA, LLC, and Ultra Shine, LLC, the documents filed by counsel are all for Ultra Shine CA. No motion has been filed regarding Ultra Shine.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2405011	OCHOA vs CITY OF RIVERSIDE	MOTION FOR LEAVE TO AMEND

Tentative Ruling:

The defendants’ request for judicial notice is denied.

The motion for leave to amend is denied.

Analysis:

The defendants’ request for judicial notice is irrelevant to the Court’s analysis and is denied on that basis.

Estrada states that the decedent died “with a trust” and no probate estate was opened. She does not state whether the trust was inter vivos or testamentary, whether she is the trustee of the trust, or whether she is a beneficiary of the trust. Nor does she explain how the cause of action became an asset of the trust. (Cf. Code Civ. Proc. § 377.32, subd. (a)(4) [“[i]f the decedent’s estate was administered, a copy of the final order showing the distribution of the decedent’s cause of action to the successor in interest”].) The amended

declaration also fails to state whether Estrada is authorized to act on behalf of the decedent's five other alleged successors in interest in compliance with Code of Civil Procedure section 377.32, subdivision (a)(5)(B). (See Estrada Amended Decl., ¶4.)

4.

CASE #	CASE NAME	HEARING NAME
CVRI2501200	VASQUEZ vs HYUNDAI MOTOR AMERICA	MOTION FOR ATTORNEY'S FEES

Tentative Ruling:

The Court does not consider the untimely declaration filed with the plaintiff's reply.

The plaintiff's objections to the declaration of Tasildoost are overruled. The objections to the declaration of Hooper are overruled as to Objection #1 and sustained as to Objection #2.

The motion for attorney's fees and expenses is granted in the reduced sum of \$15,013.87.

Analysis:

Plaintiff claims compensation for attorney's fees at rates ranging from \$400/hour to \$600/hour for attorneys. A "reasonable" hourly rate is the prevailing rate charged by attorneys of similar skill and experience in the relevant community. (*PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095.) The hourly rates claimed for counsel are not reasonable for Riverside County, especially for a simple lemon law case. Plaintiff makes no showing they could not obtain local counsel, and thus are not entitled to out-of-town rates. (See *Center for Biological Diversity v. County of San Bernardino* (2010) 188 Cal.App.4th 603, 615-619.) The Court reduces the rates to \$450/hour for a partner, \$350/hour for an associate, and \$150/hour for non-California licensed clerks.

In evaluating the reasonableness of an attorney fee request, the trial court may consider whether the case was overstaffed. (*Reck v. FCA US, LLC* (2021) 4 Cal.App.5th 682, 699.) This case was clearly overstaffed with 7 attorneys, 1 paralegal, and one law clerk. The Court does not compensate for the de minimis time entries of attorneys Colby Meagle, Lauren Unga, Russell Higgins and Sundeep Samra, each of whom billed under 3 hours on this case.

The plaintiff's request for a multiplier is denied. There is no evidence that the services rendered were of exceptional quality or exceptional risk.

The Court reduces the costs by the sum of \$983.20, described only as Attorney Services and Messenger Court Filings and Service without any itemization or further explanation.